

rence ought to have been Capitall : if the Presumption were not of the Fact, for what then ought he to lose his goods ? This therefore is no Law of *England* ; nor is the condemnation grounded upon a Presumption of Law, but upon the Presumption of the Judges. It is also against Law, to say that no Proofs shall be admitted against a Presumption of Law. For all Judges, Sovereign and subordinate, if they refuse to heare Proofs, refuse to do Justice : for though the Sentence be Just, yet the Judges that condemn without hearing the Proofs offered, are Unjust Judges, and their Presumption is but Prejudice ; which no man ought to bring with him to the Seat of Justice, whatsoever precedent judgements, or examples he shall pretend to follow. There be other things of this nature, wherein mens Judgements have been perverted, by trusting to Precedents : but this is enough to shew, that though the Sentence of the Judge, be a Law to the party pleading, yet it is no Law to any Judge, that shall succeed him in that Office.

In like manner, when question is of the Meaning of written Lawes, he is not the Interpreter of them, that writeth a Commentary upon them. For Commentaries are commonly more subject to cavill, than the Text ; and therefore need other Commentaries ; and so there will be no end of such Interpretation. And therefore unlesse there be an Interpreter authorised by the Sovereign, from which the subordinate Judges are not to recede, the Interpreter can be no other than the ordinary Judges, in the same manner, as they are in cases of the unwritten Law ; and their Sentences are to be taken by them that plead, for Lawes in that particular case ; but not to bind other Judges, in like cases to give like judgements. For a Judge may erre in the Interpretation even of written Lawes ; but no error of a subordinate Judge, can change the Law, which is the generall Sentence of the Sovereign.

In written Lawes, men use to make a difference between the Letter, and the Sentence of the Law : And when by the Letter, is meant whatsoever can be gathered from the bare words, 'tis well distinguished. For the significations of almost all words, are either in themselves, or in the metaphoricall use of them, ambiguous ; and may be drawn in argument, to make many senses ; but there is onely one sense of the Law. But if by the Letter, be meant the literall sense, then the Letter, and the Sentence or intention of the Law, is all one. For the literall sense is that, which the Legislator intended, should by the letter of the Law be signified. Now the Intention of the Legislator is alwayes supposed to be Equity : For it were a great contumely for a Judge to think otherwise of the Sovereign. He ought therefore, if the Word of the Law doe not fully authorise a reasonable Sentence, to supply it with the Law of Nature ; or if the case be difficult, to respite Judgement till he have received more ample authority. For Example, a written Law ordaineth, that he which is thrust out of his house by force, shall be restored by force : It happens that a man by negligence leaves his house empty, and returning is kept out by force, in which case there is no speciall Law ordained. It is evi-

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